

MONTEZUMA LODGE NO. 172, I.O.O.F. OF CALIFORNIA v. LEWIS, et al.
Case No. CU23-05966

- (1) Motion by Plaintiff to Withdraw Admissions;
- (2) Continued Hearing on Defendant's Motion for Judgment on the Pleadings

TENTATIVE RULING

After a motion deeming request admissions admitted has been granted, the party against whom that order has been granted can by noticed motion seek an order from the court to withdraw the admission. C.C.P. §2033.300 requires a showing of "mistake, inadvertence, or excusable neglect", and that the other side "will not be substantially prejudiced in maintaining that party's . . . defense on the merits."

While this statute could be read to allow only actual admissions, and not deemed admissions, withdrawn, it has been applied to allow deemed admissions withdrawn. Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:1386b, p. 30, citing *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.

The "mistake, inadvertence or excusable neglect" factor is subject to the same standard as a C.C.P. §473(b) motion for relief from default (but not the mandatory attorney affidavit of fault basis for relief from default). Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:1386.2, p. 30.

The Court in Wilcox justified the granting of relief from the deemed admissions as discouraging the use of gamesmanship in discovery and avoiding providing an "undeserved windfall" of admissions that gut a party's case if there are circumstances that can excuse that party's failure to provide responses to admissions requests.

Parties often propound requests for admission covering the ultimate facts of the case that, if admitted, are outcome determinative. The propounding party who gets "lucky" and receives no response then notices a motion for a deemed admitted order that, at a minimum, results in the award of monetary sanctions. If the propounding party does not receive a response by the hearing, then, under Courtesy Claims and St. Paul, he "hits the jackpot" and "wins" an irrevocable deemed admitted order disposing of the lawsuit. By permitting relief under subdivision (m), we eliminate such undeserved windfalls and the resulting subversion of the policy favoring the resolution of lawsuits on the merits. (See *Elston v. City of Turlock*, supra, 38 Cal. 3d at p. 235.) Wilcox, supra, 21 Cal.4th at 982-983.

The Court noted that monetary sanctions should provide sufficient incentive for a responding party to serve responses to admissions, even if belatedly.

Permitting the withdrawal or amendment of deemed admissions is also consonant with the legislative desire to encourage actual responses. Although

precluding such relief does create more incentive for a response, the mandatory imposition of monetary sanctions under subdivision (k) already provides "sufficient incentive for the party to whom the request is directed to comply with the requirements of this discovery method." (Reporter's Notes, § 2033, subd. (k), in 2 Hogan & Weber, *supra*, appen. C, at p. 447.) In any event, the specter of sanctions under subdivision (m) should supply any additional incentive necessary to ensure a response. Precluding the withdrawal or amendment of deemed admissions, therefore, amounts to overkill. Id. at 980.

Close calls on motions to withdraw deemed admissions should be made in favor of granting them, not denying them.

The trial court's discretion in ruling on a motion to withdraw or amend an admission is not unlimited, but must be exercised in conformity with the spirit of the law and in a manner that serves the interests of justice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court's discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party's action or defense on the merits. New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1420-1421.

If there was unremediable prejudice resulting from this delay in filing this motion, that could serve as a sufficient basis for denying this motion.

C.C.P. §2033.300(c) gives the court discretion in granting a motion for relief from admissions to impose conditions on it, "including but not limited to" authorizing the other side to conduct additional discovery, with the party granted relief required to pay the costs of that additional discovery.

This broad discretion includes the court's ability to condition relief on payment of the reasonable attorneys fees and costs incurred in the preparation and filing of the motion for judgment on the pleadings, which was based on those deemed admissions, and which might not have been filed had Plaintiff earlier filed this motion for relief from admissions.

The court shares Defendant's frustration with Plaintiff and Plaintiff's counsel's repeated failure to timely and appropriately prosecute this action. This is the second time the court has granted relief which should not have been necessary. There will not be a third. The court will find in the future that monetary sanctions are insufficient to cure Plaintiff's failure to prosecute as required by law should this continued conduct occur. However, the law prefers a decision on the merits. Denial of the motion to withdraw effectively creates a terminating sanction which is disfavored by the law. The court therefore grants Plaintiff's motion to withdraw the deemed admissions, conditioned

expressly on Plaintiff paying the reasonable fees and costs Defendant incurred in preparing and filing the motion for judgment on the pleadings.

The matter of attorneys fees and costs is continued to August 13, 2026 at 8:30. Defendant's counsel to file a declaration describing the fees and costs incurred by July 27, 2026. Any opposition to the fees and costs (which will be reviewed critically) shall be filed by August 3, 2026. If the parties meet and confer and resolve the fees and costs, Plaintiff will prepare a stipulation and order vacating the follow up hearing. Plaintiff shall have 30 days to pay those fees and costs, or this order withdrawing the deemed admissions will be vacated, and Defendant's motion for judgment on the pleadings reset for hearing on an expedited basis.

With this ruling, the court takes Defendant's motion for judgment on the pleadings off calendar, as moot at present.

ERIONA BOLER VS. DR. JEFFREY A. SALADIN COMPANY, INC.
Case No. CU24-09674

Plaintiff's Motion for Approval of PAGA Settlement

Tentative Ruling:

Parties to appear.

TARA CRUZ v. CARVANA, LLC et al.
Case No. CU25-05498

Plaintiff's Motion to Lift Stay

TENTATIVE RULING

Plaintiff TARA CRUZ moves to lift the stay ordered in this case on January 21, 2026 in conjunction with this court's order that her claims against Defendants CARVANA, LLC, BRIDGECREST ACCEPTANCE CORPORATION, and DEVELOPERS SURETY & INDEMNITY COMPANY (together "Respondents") be sent to arbitration pursuant to an arbitration agreement between the parties. Plaintiff contends that Respondents failed to timely pay arbitration initiation fees.

Forfeiture of Arbitration for Nonpayment of Fees. Code of Civil Procedure section 1281.97 states that in situations where the party that drafted an arbitration agreement is required to pay fees to initiate arbitration that party forfeits its right to arbitration if said initiation fees are not paid within thirty days of their due date. Likewise, Code of Civil Procedure section 1281.98 states that a drafting party required to pay fees that arise during the pendency of an arbitration forfeits its right to continued arbitration if said continuation fees are not paid within thirty days of their due date. The parties here do not contest that Respondents were required to pay initiation fees under the arbitration agreement with Plaintiff and failed to timely pay the fees for the arbitration Plaintiff